

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number PR29-005

**Amendments to Title 17, Chapter 2 of the Chickasaw Nation Code
(Chickasaw Nation Sex Offender Registration and Notification Act)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature previously enacted the Chickasaw Nation Sex Offender Registration and Notification Act (CNSORNA) on October 19, 2009, and

WHEREAS, the Chickasaw Tribal Legislature previously enacted technical amendments to the CNSORNA on July 16, 2010, and

WHEREAS, the Sex Offender Sentencing, Monitoring, Apprehending, Registering and Tracking (SMART) Office is the federal U.S. Department of Justice agency responsible for implementation of the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248) and the SMART Office requires certain amendments to the CNSORNA before the Nation can be deemed to have substantially implemented the registration and notification provisions of Public Law 109-248, and

WHEREAS, there is a need to amend certain portions of the Nation's Sex Offender Registration and Notification Act in order to comply with the federal Sex Offender Registration and Notification Act provisions of Public Law 109-248.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby adopts the following amendments to Title 17, Chapter 2 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

**"ARTICLE A
CHICKASAW NATION SEX OFFENDER REGISTRATION
AND NOTIFICATION ACT**

SECTION 17-201.1

SHORT TITLE.

SECTION 17-201.6 **ESTABLISHMENT.**

A. This Act hereby establishes a mechanism to register anyone convicted of a Sex Offense or an attempt or conspiracy to commit a Sex Offense.

~~A~~.B. This Act hereby establishes a Chickasaw Nation Sex Offender Registration Office, which the Chickasaw Nation shall maintain and operate pursuant to the provisions of this Act.

~~B~~.C. This Act hereby establishes a public Sex Offender registration and notification system, which the Chickasaw Nation shall maintain and operate pursuant to the provisions of this Act.

~~C~~.D. This Act hereby establishes a Chickasaw Nation Sex Offender Registry website, which shall be maintained and operated pursuant to the provisions of this Act.

E. The Chickasaw Nation Sex Offender Registration Office shall have authority to establish policies and procedures and other mechanisms necessary and proper to carrying out this Act.

SECTION 17-201.9 **DEFINITIONS.**

E. "Convicted" shall mean a Sex Offender who has been subject to penal consequences based on a conviction, however it may be styled. This includes convictions committed by any of the following:

3. Juveniles, age fourteen (14) years or older at the time of the offense, who are adjudicated delinquent for a sex offense comparable to or more severe than aggravated sexual abuse (as described in 18 U.S.C. § 2241(a) or (b)) or an attempt or conspiracy to commit such an offense.

L. "Indian" shall mean a person of any age who is a member of a federally recognized Indian tribe, as defined by 25 U.S.C. §450(b) et. seq, and who Resides or is found within the jurisdiction of the Chickasaw Nation.

M. "Indian Country" is defined, pursuant to 18 U.S.C. §1151, as:

3. all Indian allotments, the Indian titles to which have not been extinguished, including rights-of-way running through the same.

"Indian Country" shall also be defined to include land held in trust by the United States for the benefit of the Chickasaw Nation.

P. "Juvenile" shall mean any person less than eighteen (18) years of age, regardless of legal emancipation, ~~who is a member of an Indian tribe, as defined by 25 U.S.C. 450(b) et seq. or eligible for membership in an Indian tribe.~~

Q. "Minor" shall mean a person under the age of eighteen (18) years old.

~~Q~~.R. "Perpetrator" shall mean a person accused of criminal sexual conduct.

~~R~~.S. "Resides" shall mean, with respect to an individual, the location of the individual's home or other place where the individual habitually lives.

~~S~~.T. "Sexual Act" shall mean, unless otherwise provided herein, any of the following:

~~T~~.U. "Sexual Contact" shall mean, unless otherwise provided herein, the intentional touching, either directly or through the clothing, of the genitalia of another person with an intent to abuse, humiliate, harass, degrade, or arouse or gratify the sexual desire of that person.

~~U~~.V. "Sex Offender" or "Offender" shall mean a person convicted of a Sex Offense or an attempt or conspiracy to commit a Sex Offense under state, federal, military, territorial, local, maritime, foreign or tribal law.

~~V~~.W. "Sex Offender Registry" shall mean the registry of Sex Offenders and notification program maintained by the Chickasaw Nation.

~~W~~. "Sex Offense" shall mean those offenses contained in 42 U.S.C. §16911(5) and those offenses enumerated in this Act or any other covered offense under tribal law.

X. "Sex Offense", except as limited by subparagraph 6 or 7, shall mean:

1. A criminal offense that has an element involving a sexual act or sexual contact with another;

2. a criminal offense that is a "specified offense against a Minor." The term "specified offense against a Minor" means an offense against a Minor that involves any of the following:

a. An offense (unless committed by a parent or guardian) involving kidnapping.

b. An offense (unless committed by a parent or guardian) involving false imprisonment.

- c. Solicitation to engage in sexual conduct.
- d. Use in a sexual performance.
- e. Solicitation to practice prostitution.
- f. Video voyeurism as described in 18 U.S.C. §1801.
- g. Possession, production, or distribution of child pornography.
- h. Criminal sexual conduct involving a Minor, or the use of the internet to facilitate or attempt such conduct.
- i. Any conduct that by its nature is a sex offense against a Minor.

3. A Federal offense (including an offense prosecuted under section 1152 or 1153 of Title 18 of the United States Code) under section 1591, or chapter 109A, 110 (other than section 2257, 2257A, or 2258), or 117, of Title 18 of the United States Code;

4. a military offense specified by the Secretary of Defense under section 115(a)(8)(C)(i) of Public Law 105-119 (10 U.S.C. 951 note); or

5. an attempt or conspiracy to commit an offense described in clauses (1) through (4) of §17-201.9(X).

6. Offenses involving Consensual Sexual Conduct. An offense involving consensual sexual conduct is not a sex offense for the purposes of this Act if the victim was an adult, unless the adult was under the custodial authority of the offender at the time of the offense, or if the victim was at least thirteen (13) years old and the offender was not more than four (4) years older than the victim.

7. Foreign Offenses. A foreign conviction is not a sex offense for the purposes of this Act unless it was either:

a. obtained under the laws of Canada, the United Kingdom, Australia, or New Zealand, or

b. under the laws of any foreign country when the United States State Department in its Country Reports on Human Rights Practices has concluded that an independent judiciary generally or vigorously enforced

the right to a fair trial in that country during the year in which the conviction occurred.

✕.Y. "SORNA" shall mean Subchapter I entitled "Sex Offender Registration and Notification" of the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248).

Y.Z. "Student" shall mean an individual who enrolls or attends an educational institution, including a secondary school, trade or professional school, and institutions of higher education, whether public or private.

SECTION 17-201.10 **OFFENSES.**

A. Tribal Offenses. Any offenses listed within the Chickasaw Nation Code which are specifically set out as Sex Offenses or have an element involving a Sexual Act or Sexual Contact with another person or a criminal offense that is a specified offense against a Minor. Such Sex Offenses specifically include, as of the date of enactment of this Code section, the following offenses under the Chickasaw Nation Code:

1. §5-1503.13 (rape in the first degree);
2. §5-1503.14 (rape in the second degree);
3. §5-1503.15 (bestiality);
4. §5-1503.16 (lewd or indecent proposals or acts as to child under 16; sexual battery); or
5. §5-1506.13 (prostitution).

B. Federal Offenses. A conviction for any of the following, or a conviction for an attempt or conspiracy to commit any of the following, and any other offense hereafter included in the definition of a Sex Offense at 42 U.S.C. §16911(5):

2. 18 U.S.C. §1801 (video voyeurism of a Mminor);
5. 18 U.S.C. §2243 (sexual abuse of a Mminor or ward);
10. 18 U.S.C. §2252 (material involving the sexual exploitation of a Mminor);
14. 18 U.S.C. §2260 (production of sexually explicit depictions of a Mminor for import into the U.S.);

15. 18 U.S.C. §2421 (transportation of a Mminor for illegal sexual activity);

16. 18 U.S.C. §2422 (coercion and enticement of a Mminor for illegal sexual activity);

19. 18 U.S.C. §2425 (transmitting information about a Mminor to further criminal Sexual conduct).

D. Military Offenses. Any military offense specified by the Secretary of Defense under section 115(a)(8)(C)(i) of Public Law 105-119 (codified at 10 U.S.C. Section §951 note).

E. Attempt or Conspiracy. Any attempt or conspiracy to commit any crime specified in §17-201.10(A), (B), (C) or (D) above.

E:F. Juvenile Offenses or Adjudications. Any Sex Offense, or attempt or conspiracy to commit a Sex Offense, that is comparable to or more severe than the federal crime of aggravated sexual abuse (as codified in 18 U.S.C. §2241 (a) or (b)) and committed by a Juvenile who is fourteen (14) years of age or older at the time of the offense.

F:G. State, Tribal, Territory, and Foreign Offenses. Any criminal offense committed in any state, tribe, territory, or the District of Columbia, and any foreign country (subject to §17-201.10:(C)) that involves:

3. kidnapping of a Mminor;

4. false imprisonment of a Mminor;

5. solicitation to engage a Mminor in Sexual Conduct, understood broadly to include any direction, request, enticement, persuasion, or encouragement of a Mminor to engage in Sexual Conduct;

6. use of a Mminor in a sexual performance;

7. solicitation of a Mminor to practice prostitution;

9. criminal sexual conduct that involves physical contact with a Mminor or the use of the internet to facilitate or attempt such conduct. This includes offenses in which elements involve the use of other persons in prostitution, such as pandering, procuring, or pimping in cases where the victim was a Mminor at the time of the offense;

10. any conduct that by its nature is a Sex Offense against a Mminor; or

11. any conduct similar to those prohibited by the following:

- b. 18 U.S.C. §1801 (video voyeurism of a Mminor);
- f. 18 U.S.C. §2422(b) (coercing a Mminor to engage in prostitution); or
- g. 18 U.S.C. §2423(a) (transporting a Mminor to engage in illicit conduct).

G. ~~Standards for Tiering of Offenses. The following definitions shall be used as the baseline standards for the Nation's tier classification system:~~

- ~~1. "minor" is defined as an individual under the age of 18;~~
- ~~2. "sexual contact" means offenses that cover sexual touching of or contact with the intimate parts of the body, either directly or through the clothing;~~
- ~~3. "sexual act" means offenses involving:~~
 - ~~a. any direct touching of the genitals of a person under 16; or~~
 - ~~b. oral, anal, or vaginal penetration of any kind which occurs:~~
 - ~~i. when the victim is under thirteen (13) years of age;~~
 - ~~ii. by force;~~
 - ~~iii. by way of threat or intimidation;~~
 - ~~iv. when the victim has been rendered unconscious;~~
 - ~~v. when the victim is incapable of appraising the nature of their conduct;~~
 - ~~vi. when the victim is physically incapable of communicating non-consent; or~~
 - ~~vii. when a drug or intoxicant has been administered which substantially impairs the ability of the other person to appraise or control their conduct.~~

SECTION 17-201.11

TIER 1 OFFENSE.

A. A Tier 1 offense includes any Sex Offense that involves an element of a Sexual Act or Sexual Contact with another, for which a person has been Convicted, or an attempt or conspiracy to commit such an Sex Offense, that is not a Tier 2 or Tier 3 offense.

B. A Tier 1 offense also includes any offense for which a person has been Convicted by any jurisdiction, local government, or Foreign Country that involves the false imprisonment of a Mminor, video voyeurism of a Mminor, or possession or receipt of child pornography.

C. Certain Federal Offenses. Conviction for any of the following federal offenses or an attempt or conspiracy to commit such an offense shall be considered a conviction for a Tier 1 offense:

1. 18 U.S.C. §1801 (video voyeurism of a Mminor);

9. 18 U.S.C. §2423(d) (arranging, inducing, procuring or facilitating the travel in interstate commerce of an adult for the purpose of engaging in illicit conduct for financial gain);

9:10. 18 U.S.C. §2424 (failure to file factual statement about an alien individual);
or

10:11. 18 U.S.C. §2425 (transmitting information about a Mminor to further criminal Ssexual conduct); or

E. Tribal Offenses. A Tier 1 offense includes any tribal offense listed under the Chickasaw Nation Code which expressly states that it is a Tier 1 Sex Offense, regardless of any other provisions of this Act. The category of Tier 1 Sex Offenses under the Chickasaw Nation Code shall include, but is not limited to, the following:

1. §5-1506.13(11) (encourage, induce, or otherwise purposely cause another to become or remain a prostitute [when not involving a Minor]).

2. §5-1506.13(12) (transport a person with a purpose to promote that person's engaging in prostitution or procuring or paying for transportation with that purpose [when not involving a Minor]).

SECTION 17-201.12

TIER 2 OFFENSES.

A. Recidivist Offender and Felonies. Unless the offense is a Tier 3 Sex Offense, any Sex Offense that is not the first Sex Offense for which a person has been Convicted or an attempt or conspiracy to commit such an offense and that is punishable by more than one (1) year in jail is considered a Tier 2 offense.

B. Offenses Involving Minors. A Tier 2 offense includes any Sex Offense against a Mminor for which a person has been convicted in any jurisdiction, or an attempt or conspiracy to commit such an offense that involves any of the following:

1. the use of a Mminor in prostitution, including solicitations;
2. enticing a Mminor to engage in criminal sexual activity;
3. non-forcible Sexual Act with a Mminor fourteen (14) years of age or older, whether directly or indirectly through the clothing, that involves the Intimate Parts of the body;
4. The use of a Mminor in a sexual performance;
6. Sexual Contact with a Mminor thirteen (13) years of age or older.

C. Certain Federal Offenses. Conviction for any of the following federal offenses or an attempt or conspiracy to commit such an offense shall be considered a conviction for a Tier 2 offense:

- ~~2.~~ 18 U.S.C. §2243 (sexual abuse of a minor or ward);
- ~~3:~~2. 18 U.S.C. §2244 (abusive sexual contact, where victim is 13 years old, or older);
- ~~4:~~3. 18 U.S.C. §2251 (sexual exploitation of children);
- ~~5:~~4. 18 U.S.C. §2251A (selling or buying of children);
- ~~6:~~5. 18 U.S.C. §2252 (material involving the sexual exploitation of a Mminor);
- ~~7:~~6. 18 U.S.C. §2252A (production or distribution of material containing child pornography);
- ~~8:~~7. 18 U.S.C. §2260 (production of sexually explicit depictions of a Mminor for import into the United States);
- ~~9:~~8. 18 U.S.C. §2421 (transportation of a Mminor for illegal sexual activity);
- ~~10:~~9. 18 U.S.C. §2422(b) (coercing a Mminor to engage in prostitution); ~~or~~
- ~~11:~~10. 18 U.S.C. §2423(a) (transportation for prostitution); ~~or~~
11. 18 U.S.C. §2423(d) (arranging, inducing, procuring or facilitating the travel in interstate commerce of a Minor for the purpose of engaging in illicit conduct for financial gain).

D. Certain Military Offenses. Any military offense specified by the Secretary of Defense under Section 115(a)(8)(C)(i) of Public Law 105-119 (codified at 10 U.S.C. §951 note) shall be considered a Tier 2 offense.

E. Tribal Offenses. A Tier 2 offense includes any tribal offense listed under the Chickasaw Nation Code which expressly states that it is a Tier 2 offense, regardless of the term of punishment. The category of Tier 2 Sex Offenses under the Chickasaw Nation Code shall include, but is not limited to, the following:

1. §5-1506.13(11) (encourage, induce, or otherwise purposely cause another to become or remain a prostitute [when involving a child thirteen (13) years of age or older]).
2. §5-1506.13(12) (transport a person with a purpose to promote that person's engaging in prostitution or procuring or paying for transportation with that purpose [when involving a child thirteen (13) years of age or older]).

SECTION 17-201.13

TIER 3 OFFENSES.

A. Recidivist Offender and Felonies. Any Sex Offense for which a person previously convicted of a Tier 2 offense or an attempt or conspiracy to commit such an offense, or for a person who has previously become a Tier 2 Sex Offender, whose current Sex Offense conviction is punishable by more than one (1) year imprisonment is considered a Tier 3 offense.

B. General Offenses. A Tier 3 offense includes any Sex Offense for which a person has been Convicted of the offense, or an attempt or conspiracy to commit such an offense, which involves:

1. non-parental kidnapping of a Mminor;
2. a Sexual Act with another by force or threat; ~~with another as provided for in §17-201.10(G); or~~
3. a Sexual Act with another who has been rendered unconscious or involuntarily drugged, or who is otherwise incapable of appraising the nature of the conduct, or declining to participate; or
- 3.4. Sexual Contact with a Mminor ~~under thirteen (13) years of age~~ twelve (12) years of age or younger, including offenses that cover sexual touching of or contact with the intimate parts of the body, either directly or through the clothing.

C. Certain Federal Offenses. Conviction for any of the following federal offenses or an attempt or conspiracy to commit such an offense shall be considered conviction for a Tier 3 offense:

2. 18 U.S.C. §2242 (sexual abuse); or
3. 18 U.S.C. §2243 (sexual abuse of a Minor or ward); or
- 3:4. 18 U.S.C. §2244 (abusive Sexual Contact, victim under thirteen (13) years of age).

E. Tribal Offenses. A Tier 3 offense includes any tribal offense listed under the Chickasaw Nation Code which expressly states that it is a Tier 3 offense, regardless of the term of punishment. The category of Tier 3 Sex Offenses under the Chickasaw Nation Code shall include, but is not limited to, the following:

1. § 5-1503.13 (rape in the first degree);
2. § 5-1503.14 (rape in the second degree);
3. § 5-1503.15 (bestiality);
4. § 5-1503.16 (lewd or indecent proposals or acts as to a child under 16; sexual battery);
5. § 5-1506.13(11) (encourage, induce, or otherwise purposely cause another to become or remain a prostitute [when involving a child twelve (12) years of age or younger]); and
6. § 5-1506.13(12) (transport a person with a purpose to promote that person's engaging in prostitution or procuring or paying for transportation with that purpose [when involving a child twelve (12) years of age or younger]).

SECTION 17-201.14

REGISTRATION REQUIREMENTS FOR SEX OFFENDERS.

C. Current Information. A Sex Offender with a conviction listed in this Act shall keep his personal information current in the Registry at all times. A Sex Offender is required to appear in person at the Chickasaw Nation Sex Offender Registration Office to update any change in his personal information within three (3) business days of such change. The information required to be updated includes but is not limited to:

10. vehicle information;
11. intent to travel outside of the United States;
- ~~10:~~12. termination of employment; and
- ~~11:~~13. termination of school attendance.

D. Registration Period. The registration period begins to run upon release from custody for an incarcerated Sex Offender, or at sentencing for Sex Offenders not incarcerated. The length of registration is as follows:

1. ~~Adults:~~

1. a. ~~fifteen (15) years if the Offender is a Tier 1 Sex Offender;~~
2. b. ~~twenty-five (25) years if the Offender is a Tier 2 Sex Offender; or~~
3. c. ~~the life of the Offender if the Offender he is a Tier 3 Sex Offender.~~

2. ~~Juveniles:~~

- a. ~~ten (10) years if the Offender is a Tier 1 Sex Offender;~~
- b. ~~twenty (20) years if the Offender is a Tier 2 Sex Offender; or~~
- c. ~~the life of the Offender if he is a Tier 3 Sex Offender.~~

E. Clean Record. There are only two (2) classifications of sex offenders that are permitted to have a reduced registration provided that certain requirements are met. An eligible Sex Offender who has maintained a clean record may petition the Court to reduce the Offender's registration period.

2. Tier 3 Offender. The Sex Offender must have maintained a clean record for twenty-five (25) years and satisfied all of the following conditions:

- a. the Offender was required to register based on a delinquency adjudication as a Juvenile for an offense which required Tier 3 registration;

SECTION 17-201.15

FAILURE TO REGISTER.

C. Absconders. When the Chickasaw Nation Sex Offender Registration Office has information that a Sex Offender may have absconded, a reasonable effort must be made by law enforcement the Chickasaw Nation Sex Offender Registration Office to determine whether the Sex Offender has actually absconded.

1. In the event no determination can be made, the Chickasaw Nation Sex Offender Registration Office or designee shall ensure the Chickasaw Lighthouse Police Department and any other appropriate law enforcement agency is notified.

2. If the information indicating the possible absconding came through notice from another jurisdiction or federal authorities, those authorities shall be informed that the Sex Offender has failed to appear or actually register.

3. If an absconded Sex Offender cannot be located then the Chickasaw Lighthorse Police Department shall take the following steps:

- a. update the registry/public website to reflect the Sex Offender has absconded or is otherwise not capable of being located,
- b. notify the U.S. Marshals Service,
- c. seek a warrant for the Sex Offender's arrest. The U.S. Marshals Service or FBI may be contacted in an attempt to obtain a federal warrant for the Sex Offender's arrest,
- d. update the National Crime Information Center ("NCIC")/National Sex Offender Registry ("NSOR") to reflect the Sex Offender's status as an absconder, or is otherwise not capable of being located, and
- e. enter the Sex Offender into the National Crime Information Center Wanted Persons File.

SECTION 17-201.16

PROVIDING FALSE INFORMATION.

B. If a Sex Offender provides false information to the Chickasaw Nation Sex Offender Registration Office, the Nation shall:

2. revise the information in the Chickasaw Nation Sex Offender Registry to reflect that the Sex Offender has provided false information and the Offender's is considered an Absconder; and

SECTION 17-201.17

RETROACTIVE REGISTRATION REQUIREMENTS OF THE CHICKASAW NATION.

A. This Act applies to all Sex Offenders, ~~including those convicted of Sexual Offenses prior to its enactment~~ regardless of when they were convicted. The Nation is specifically required to recapture, which includes appropriately classifying and retroactively registering Sex Offenders if they are in the tribal judicial system as prisoners, supervisees, or registrants or if they reenter the system due to another conviction. The Nation shall notify such Sex Offenders of the new requirement. The Nation shall establish procedures to recapture and retroactively register the following categories of Sex Offenders:

1. Sex Offenders incarcerated or under supervision, either for the predicate Sex Offense or for some other crime; ~~Convicted by any tribal Court who are sentenced and released on probation or post-Imprisonment supervision prior to the jurisdiction's passage of this Act and registration was not required at that time;~~

2. Sex Offenders already registered or subject to a pre-existing sex offender registration requirement under the Nation's laws or that of another jurisdiction; ~~who are registered under previous law, but who are not aware of the requirement to appear in person each year; and~~

3. Sex Offenders who reenter the Nation's criminal justice system because of a conviction for some other crime regardless of whether or not the crime is a Sex Offense. ~~who were not required to register previously, or who have completed any registration or probation requirements, and have been Convicted of any new Sex Offense.~~

C. The initial registration of recaptured Sex Offenders shall take place within the following time periods as of the date of the Act's enactment:

1. Tier 1 Offenders: within one (1) year;
2. Tier 2 Offenders: within six (6) months; and
3. Tier 3 Offenders: within three (3) months.

SECTION 17-201.18

MAINTENANCE AND MANAGEMENT OF REGISTRY.

D. The Nation shall procure and maintain at all times computer software to enable the Nation or its designee to establish and operate a uniform Sex Offender Registry and Internet web site. Such software shall facilitate (a) the Immediate exchange of information among jurisdictions, (b) public access over the Internet to appropriate information, including the number of registered Sex Offenders in the Nation's jurisdiction, (c) full compliance with the requirements of SORNA, and (d) communication of information to community notification program participants.

F. Whenever a Sex Offender registers or updates his or her information, the Chickasaw Nation Sex Offender Registration Office shall: ~~In addition to the public website, the Chickasaw Nation Sex Offender Registration Office shall Immediately give notice of any Sex Offender registering or updating information to the following:~~

1. monitor and utilize the SORNA Exchange Portal for inter-jurisdictional change of residence, employment or student status, including following guidance issued by the U.S. Department of Justice on use of the SORNA Exchange Portal;
2. immediately update NCIC/NSOR;

- 1.3. immediately notify the U.S. Attorney General or national database;
- 2.4. immediately notify all law enforcement agencies, schools, and the public housing agencies in the area in which the Offender Resides;
- 3.5. immediately notify each jurisdiction where the Sex Offender is employed, attends school, or Resides, and each jurisdiction from or to which a change of residence, temporary lodging, employment, or student status occurs;
- 4.6. immediately notify agencies in the immediate area that conduct employment background checks under Section 3 of the National Child Protection Act of 1993;
- 5.7. immediately notify Social Service or volunteer entities in the area responsible for protecting Mminors;~~and~~
- 6.8. immediately notify any organization or individual that has requested notification; and:
9. immediately enter or update information posted on the public website.

SECTION 17-201.19**REGISTRY INFORMATION REQUIRED TO BE
PRESERVED BY THE CHICKASAW NATION.**

A. A Sex Offender covered by this Code who is required thereby to register with the tribe shall provide all the information detailed in this Chapter to the Chickasaw Nation Sex Offender Registration Office. The following Sex Offender information is required to be kept by the Chickasaw Nation Sex Offender Registration Office in a Digitized Format and on an electronic database that will enable it to be Immediately accessed by or transmitted to various entities, and shall be used on the public website unless specifically excluded:

14. fingerprints and; palm prints. This can be digitized form, or hyperlinks to the central Registry;
20. Social Security Number;~~and~~
21. notice of intent of the Sex Offender to travel outside of the United States, which shall require the following:
 - a. notice of such intent must be provided in person by the Sex Offender at least twenty-one (21) days in advance of travel;
 - b. the Chickasaw Nation Sex Offender Registration Office must notify the U.S. Marshals Service and any other jurisdiction where the Sex Offender is

registered, or required to register, of the updated information, and must update NCIC/NSOR;

c. the Chickasaw Nation Sex Offender Registration Office must advise the Sex Offender of his duty to provide notice of intent to travel outside the United States; and

21-22. when the Offender is in violation of this Act or can not be located, the website must note this fact and label the Offender as an "Absconder".

SECTION 17-201.20 **MANDATORY EXCLUSIONS.**

D. the Sex Offender's travel and immigration document numbers;; and

E. the Sex Offender's Internet identifiers.

SECTION 17-201.21 **REGISTRY INFORMATION REQUIRED TO BE PRESERVED BY THE CHICKASAW NATION.**

C. require the Sex Offender to read and sign a form, as provided in §17-201.25, stating that the duty to register has been explained and that the Sex Offender understands the registration requirements; and

SECTION 17-201.22 **THE CHICKASAW NATION AS RESIDENCE, EMPLOYER, AND SCHOOL JURISDICTIONS.**

C. Any notification provided by the Nation under Section §17-201.22, including notifying jurisdictions where the Sex Offender is temporarily staying, shall be provided within three (3) business days.

SECTION 17-201.23 **REGISTRATION NOT REQUIRED.**

~~———— The Nation shall not require registration of a Sex Offender with the Chickasaw Nation Sex Offender Registration Office based on a court conviction if the Offender was denied the right to the assistance of counsel and the Offender would have had a right to the assistance of counsel under the United States Constitution in comparable state court proceedings:~~

SECTION 17-201.234 **EMPLOYEES OF THE CHICKASAW NATION.**

An Employee of the Nation who fails to inform the Nation Immediately that he is a registered Sex Offender, or who fails to register as a Sex Offender, or who fails to keep Sex Offender registration information current, may be discharged from employment with the Nation without notice.

SECTION 17.201.25 FORM FOR UPDATING OFFENDER INFORMATION:

The forms for updating and verifying Sex Offender information and notifying Sex Offenders of their duty to register shall be in substantial compliance with the following:

Offender Information Verification and Notification

Full Legal Name: _____
Date of Birth: _____ Social Security Number: _____
Aliases or Tribal Names: _____
Current Address: _____
Past Addresses: _____
Alternative Addresses: _____
Phone: _____ Cell Phone: _____
Hair Color: _____ Weight: _____ Height: _____
Tattoos, Scar, or Identifying Marks: _____
Internet identifiers: _____
Employer name: _____ Address: _____ Phone: _____
Professional licenses: _____
School Name: _____ Address: _____ Phone: _____
Vehicle Make and Model: _____ License Plate #: _____
Watercraft, Aircraft or any other Land Vehicles Owned: _____

Check One:

- _____ I am a Tier I Offender and understand that I must update my information every twelve
_____ (12) months.
_____ I am a Tier II Offender and understand that I must update my information every six
_____ (6) months.
_____ I am a Tier III Offender and understand that I must update my information every three
_____ (3) months.

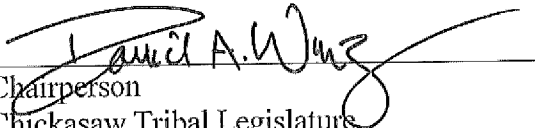
I, _____, a convicted sex offender, do verify that the above information is true and correct. I understand that if I provide false information to the Chickasaw Nation Sex Offender Registration Office, I will be arrested and charged with providing false information. I understand that if I fail to register or update my information as required, I will be arrested and charged with failure to register. I also certify that I have been informed of my duties to register under the Chickasaw Nation Sex Offender Registration and Notification Act and I understand the registration requirements.

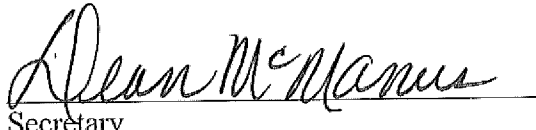
Date: _____

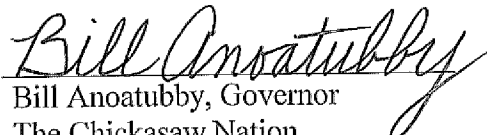
Sex Offender's Signature

Witnessing Officer Badge #"

Executed in regular session of the Chickasaw Tribal Legislature, meeting in Ada, Oklahoma, on August 17, 2012, by a vote of 11 ayes, 1 nays, and 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 17 2012

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number PR29-005
Amendments to Title 17, Chapter 2 of the Chickasaw Nation Code
(Chickasaw Nation Sex Offender Registration and Notification Act)

Explanation: This resolution amends Title 17, Chapter 2 of the Chickasaw Nation Code to address the most recent technical requirements made by the SMART Office, which is the U.S. Department of Justice agency that is responsible for the implementation of the Adam Walsh Child Protection and Safety Act of 2006 (Public Law 109-248). The original Chickasaw Nation Sex Offender Registration and Notification Act was enacted on October 19, 2009, and subsequently there have been new requirements with which the Chickasaw Nation must comply. These amendments are essential in order for the Chickasaw Nation to properly register and manage sex offenders, thereby ensuring public safety.

Presented by: Court Development Committee